PANJAB UNIVERSITY, CHANDIGARH

(Estted. under the Panjab University Act VII of 1947- enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

Diploma/ Certificate Course

In

Intellectual Property Rights

EXAMINATIONS, 2021-22

Diploma/ Certificate Course
In
Intellectual Property Rights

Objective of the Course Programme

India is ranked as the fastest emerging economy and a major global player in the years to come. The country has the largest scientific and technical human resources among top five countries in the world. With the advent of WTO regime, it has integrated its IP legislations in compliance with TRIPS agreement and is poised to be a destination for research and innovation.Such transformation requires capacity building in the field of IPR human resources. Acquisition of different Intellectual Property Rights, prosecution and protection require training and skills of IP law for technical and legal professionals.

The Course structure will expose the candidates to the basics of the IP law, the various approaches in enforcing rights, the litigation issues by way of case law discussion, the drafting skills, and international dimensions of the IP regime and transactional issues in monetizing Intellectual property.

Pedagogy: There will be five papers with 100 marks each. Internal division of paper will be 80 marks for theory and 20 marks for project report. Along-with 5 papers, the student will be required to prepare a project report with 100 marks. The student has to obtain 50 percent marks in each paper to get the pass certificate in the course.

Nature of course: The course shall be a certificate course and Diploma certificate course. Student has the option to either complete certificate course after taking three papers of first Semester from Paper-I to Paper Paper-III, on the completion of these three (3) papers a certificate course shall be awarded to the candidate. If a student opts for all six papers from paper-IV to VIin second Semester Diploma course shall be awarded. Students have also the option to complete one or more paper of 4 credits.

Admission and Exams: Admission and Exam shall be conducted as per the rules and regulations of the PanjabUniversity**.** Admission to both the course shall be in the month of July. **Main Examination of Diploma Course in both the subjects shall be conducted in the month of May and Reappear in the month of December, whereas for Certificate Course examination shall be held in the month of December and reappear examination in the month of May respectively.**

Fee structure:

For Diploma courses Rs. 10,000/-For Certificate Course Rs. 5000/- and Rs. 2000/- for each paper.

Paper I : Concept of IPR and Related Rights

Minimum Eligibility of student for examination is 10 +2

Objective of paper is to acquaint the students with basic concept of Intellectual Property Rights and its emerging trends in 21st century.

Max. Marks : 100
Theory: 80 Marks
Project Work :20 Marks

Unit I: General Introduction to Intellectual Property Rights

Theories on concept of Property i.e. Public vs. Private, Tangible vs. Intangible, Industrial vs. Intellectual

Origin and Development of Intellectual Property Rights

Meaning, Nature, Need and Forms of Intellectual Property Rights

Unit II: International IPR regime

The WIPO Convention, 1967;The TRIPS Agreement, 1994;World Intellectual Property Organization (WIPO): Functions and Membership;GATT Agreement

Unit III: National Dimension of IPR

Overview of Major Intellectual Property Rights Laws in India

Authorities: Department for Promotion of Industry and Internal Trade, Office of Controller General of Patents, Designs and Trademarks, National IPR Policy 2016, Scheme For "Building Awareness on Intellectual Property Rights (IPR)" For Micro, Small And Medium Enterprises (MSMEs) under National Manufacturing Competitiveness Program (NMCP)

Unit IV: Emerging Issues in IPR

IPR: Plagiarism, Artificial Intelligence and Human Rights

IPR: Boon or Bane for Traditional Knowledge and Indigenous Rights

Challenges to implementation of IPR in India

IPR in cyberspace, Digital Content and Media

Suggested Reading:-

Books

1. W. R. Cornish, Intellectual Property: Patents, Copyright, Trade Marks and Allied Rights (Sweet & Maxwell, 2003)

2. V.K.Ahuja, Intellectual Property Rights in India (Lexis Nexis, Butterworths, Wadhwa, Nagpur, 2017)
3. S.K. Verma, Intellectual Property Rights: A Global Vision (ILI, New Delhi, 2004)
4. N.S. Gopalakrishnan and T.G. Ajitha, Principles of Intellectual Property, (Eastern Book Company, 2nd edn. , 2014)

Articles

1. Philippe Cullet, "Human Rights, Knowledge and Intellectual Property Protection", 11(1) Journal of Intellectual Property Rights (2006)
2. Ostergard, Robert L. "Intellectual Property: A Universal Human Right?" 21(1) *Human Rights Quarterly* (1999)
3. Laurence R. Helfer, "Human Rights and Intellectual Property: Conflict or Coexistence?" 5(1) Minnesota Intellectual Property Review (2003)
4. V. Kumar and K. Sinha, "Status and Challenges of Intellectual Property Rights in Agriculture Innovation in India" 20 Journal of Intellectual Property Rights (2015)
5. A. Ravishankar, and S.Archak, "Intellectual Property Rights and Agricultural Technology: Interplay and Implications for India" 35(27) Economic and Political Weekly(2000)
6. S. Sahai, "Importance of Indigenous Knowledge in IPR System" 31(47) Economic and Political Weekly (1996)
7. D. M. Nachane "Intellectual Property Rights in the Uruguay Round: An Indian Perspective" 30(5) Economic and Political Weekly (1995)
8. S. V. Ramani, and A. Maria. "TRIPS: Its Possible Impact on Biotech Segment of the Indian Pharmaceutical Industry." 40(7) Economic and Political Weekly(2005)

PAPER II: Law of Copyright and Related Rights

Minimum Eligibility of student for examination is 10 +2

Objective of paper is to acquaint the students with basic terminology of Copyright and protection of the rights related to it and penalties for its violations

Max. Marks : 100
Theory: 80 Marks
Project Work :20 Marks

Unit I: Introduction to concept of Copyright

Historical evolution of concept of Copyright and development of Copyright laws

World Intellectual Property Organization (WIPO) and international treaties and conventions: Marrakesh Treaty, Berne Convention, Beijing Treaty, Rome Convention, WIPO Copyright Treaty (WCT), WIPO Performances and Phonograms Treaty, Universal Copyright Convention, 1952.

Unit II: Fundamentals of Copyright

Copyright – Concept of Originality and Idea vs Expression dichotomy

Subject matter of Copyright: original Literary, Drama, musical works, sound Records, Cinematograph films

Copyright as an Economic, Human and Moral rights

Unit III: Law related to Copyright and its licensing and Registration in India

- Procedure for registration: e-filing facility
- Ownership and Assignment of Copyright
- Term of Copyright, License : Voluntary/Statutory/Compulsory
- Effects of Copyright registration and its protection outside India, International Copyright
- Copyright Office and Appellate Board, Copyright Societies

Unit IV: Infringement of Copyright and Remedies

- Limitations and Exceptions: Fair Dealing
- Infringement and Remedies and Reliefs- Civil/Criminal/Administrative- Injunction- Anton pillar
- Judiciary and Copyright
- Copyright in the Commercial world

Suggested Readings

Books:-

1. Copyright Act, 1957
2. P. Narayanan, Law of Copyright and Industrial Designs (Eastern Law House Ltd., New Delhi, 2017)
3. H.K. Saharay, Iyengar's Commentary on the Copyright Act (Universal Law Publishing, 2016)
4. AlkaChawla, Copyright and Related Rights: National and International Perspectives (Macmillan India Ltd., Delhi, 2007)
5. A. Padmanabhan, Intellectual Property Rights Infringement and Remedies (Lexis Nexis, 2012)

Articles:-

1. U. Baxi, "Copyright Law and Justice in India" 28(4) Journal of the Indian Law Institute(1986).
2. P. N.Thomas "Copyright and Emerging Knowledge Economy in India" 36(24) Economic and Political Weekly(2001).
3. B. Kaul "Copyright Protection: Some Hassles and Hurdles" 46(2) Journal of the Indian Law Institute(2004).
4. A. Bansal "Public Interest in Intellectual Property Laws" 55(4) Journal of the Indian Law Institute (2013).
5. V. Sitapati"Conferring 'Moral Rights' on Actors: Copyright Act and ManishaKoirala Case" 38(14) Economic and Political Weekly (2003).
6. A. Ghosh "Censorship through Copyright: From print to digital media"41(1/2) Social Scientist (2013).
7. S. Chopra "Inadequate Protection against Piracy: Copyright Amendments Inadequate" 5 The Indian Journal of Intellectual Property Law (2012).
8. Z. Thomas "Overview of Changes to the Indian Copyright Law" 17 Journal of Intellectual Property Law (2012)

PAPER III: Law of Trademark and Industrial designs

Minimum Eligibility of student for examination is 10 +2

Objective of paper is to acquaint the students with basic concept of Trademark and Industrial designs and protection of the rights related to it and penalties for its violations.

Max. Marks: 100
Theory : 80 Marks
Project Work : 20 Marks

Unit I: Law of Trademarks, Industrial Designs and related Issues

Evolution, Meaning, Nature and Kinds of Trademark

Evolution, Meaning and Nature of Industrial Designs, Layout Designs-Integrated circuits

Fundamentals of protection of Trademarks, Industrial Designs, Layout Dsigns

Historical and economic examination of the concepts of Trademarks, Designs, and unfair competition, Overlap of Design Rights with Copyright and Trade Marks

Unit III: International Position

International Trade mark regimes: the role and influence of the World Intellectual Property Organization; Paris Convention, Madrid Agreement; Nice Agreement, Vienna Agreement, TRIPs Agreement and Trademark

International Treaties and Agreements with respect to Industrial Design: Hague Agreement, Locarno Agreement, TRIPs

Unit II:Law related to Trademarks in India: Trademarks Act, 1999

Registration and its Procedure, Registrar of Trademarks

Effect of Registration

Assignment and Transmission

Infringement- Goodwill and Passing off- Criteria of Infringement, Remedies

Unit IV: Rights related to Industrial Designsand Layout Design-Integrated Circuit in India:

A. The Design Act 2000
   i) Registration: Subject matter of Design: Exclusion, Novelty and originality, Certificate of Registration, Register of Designs
   ii) Rights in Industrial Design: Copyright in Registered Designs, Piracy of Registered Designs and Penalty
   iii) Power and Duties of Controller

B. The Semiconductor Integrated Circuits Layout-Design Act, 2000
   i) Registration: Procedure and Duration, Registrar of Semiconductor Integrated Circuits Layout Design, Effect of Registration, Rights of Registered users
   ii) Appellate Board: Composition, Power and Procedure
   iii) Infringement, Penalties and Offences

Suggested Readings

Books:-

1. Trade Marks Act, 1999
2. The Designs Act, 2000
3. The Semiconductor Integrated Circuits Layout-Design Act, 2000.
4. A. Bansal, Law of Trade Marks in India with introduction to Intellectual Property Laws (Institute of Constitutional and Parliamentary Studies, New Delhi, 2009)
5. S. Venkataraman, Understanding Design Law (Universal Law Publishing Co. Pvt. Ltd, New Delhi, 2008).
6. D.P. Mittal, Trade Marks, Passing Off &Geographical Indications of Goods: Law and Procedure (Taxmann Allied Services, New Delhi, 2002)
7. K.C. Kailasam, R.Vedaraman, Law of Trade Marks Including International Registration under Madrid Protocol & Geographical Indications (Wadhwa& Co., Nagpur, 2017)

ARTICLES:-

1. D. Gangjee "Non-Conventional Trade Marks in India" 22(1) National Law School of India Review (2010)
2. S. Sinha and K. Gopal "Tracing the Jurisprudence of smell marks as a Trademark" 1(II) HNLU Student Bar Journal (2017)

PAPER IV: Law of G.I and Biodiversity and related Issues

Minimum Eligibility of student for examination is 10 +2

Objective of paper is to acquaint the students with concept, need, issues and emerging areas of G.I and Biodiversity and protection of the rights related to it

Max. Marks : 100
Theory : 80 Marks
Project Work : 20 Marks

Unit I: Geographical Indications and related Issues

Evolution and Meaning of concept of Geographical Indication

International Conventions and Agreements: -TRIPS and GIs, Paris Convention, Madrid Agreement, Lisbon Agreement

Unit II: Law related to Geographical Indications in India

Subject matter of G.I

Registration of G.I

Rights related to G.I

Offences and Penalties

Unit III:Biodiversity and Traditional Knowledge

Meaning, Nature, characteristics of Traditional Knowledge

Preservation of Traditional Practices and Culture, Indigenous Peoples' Participation in Development Process, Conservation of Environment and Management of Bio Diversity

International Initiatives: Rio Declaration on Environment and Development 1992, The Convention on Biological Diversity, 1992, International Treaty on Plant Genetic Resources for Food and Agriculture, 2001, TRIPs initiatives etc.

Unit IV: Law related to Biodiversity and Traditional Knowledge in India

Protection of Plant Varieties and Farmers' Rights Act, 2001- Registration of Plant Varieties and Essentially derived variety, Duration, Effect of Registration and Benefit Sharing

Surrender and revocation of Certificate

Plant Varieties Protection Appellate Tribunal

Infringement, Offences, Penalties and Procedure

Suggested Reading:

1. The Geographical Indications of goods (Registration and Protection) Act, 1999.
2. Biodiversity Act 2002
3. The Protection Of Plant Varieties And Farmers' Rights Act, 2001
4. Latha R Nair and Rajendra Kumar, Geographical Indications: A Search for Identity (Lexis Nexis, New Delhi, 2005)
5. S.R. Reddy and V.K. Reddy, Biodiversity, Traditional Knowledge and Intellectual Property Rights (Scientific Publishers, 2016)
6. D. M. Vivie, The Protection of Geographical Indications in India: A New Perspective on the French and European Experience(SAGE India, 2015)
7. S Bala Ravi, "Effectiveness of Indian Sui Generis Law on Plant Variety Protection and its Potential to Attract Private Investment in Crop Improvement", 9 Journal of Intellectual Property Right (2004)

ARTICLES:-

1. S. Srivastava "Geographical Indications and Legal Framework in India" 38(38) Economic and Political Weekly (2003).
2. K. Kishore "Geographical Indications in Horticulture: An Indian perspective" 23 Journal of Intellectual Property Rights (2018).
3. S.K. Verma "Enforcement of Intellectual Property Rights: TRIPs Procedure and India" 46(2) Journal of The Indian Law Institute (2004).

PAPER V: Law of Patent and related issues

Minimum Eligibility of student for examination is 10 +2

Objective of paper is to acquaint the students withbasic terminology of Patent and protection of the rights related to it and penalties for its violations

Max. Marks : 100
Theory :80 Marks
Project Work : 20 Marks

Unit I: Introduction to Patent System in National and International arena

Historical evolution of Concept of Patent in International arena: Paris Convention, Patent Cooperation Treaty, WTO-TRIPs

Evolution of Indian Patent system and impact of International Conventions and Treaties

Meaning and concept of Patent, Elements of Patentability, Process and Product (Biotechnology / Pharmaceutical Products / Software Program), Non-Patent subject matter

Unit II: Indian Patent System

Patent Eligibility and Patentability requirements

Process of Obtaining a Patent- Application, Publication and Examination, Opposition, Sealing of Patents, Preservation of Patents, Documentation, Grant and Register of Patents

Provisions for Secrecy of Certain Inventions

Unit III: Rights and Obligation of Patentee

Duration of Patents

Rights of Patentee: Limitation of rights, Use and exercise, Right to Secrecy, Compulsory Licenses, Use and acquisition of inventions by Central Government

Restoration of lapsed patent, Revocation and surrender of patents

Unit IV: Infringement and Enforcement

Infringement: Criteria and Modes of Infringement

Enforcement: Remedies and Penalties

Patent Authorities: Controller General of Patent, Patent Office and Appellate Board, Patent Agents, Patent Examiners

Suggested Readings-:

Books:-

1. The Patent Act, 1970
2. Elizabeth Verkey, Law of Patent (Eastern Book Company, Lucknow, 2005)
3. B.P. Bhargava, Law Of Patent- Procedure And Practice (Vidhi Publishing House,New Delhi, 1999)

Articles:-

1. P. Naolekar "Judicial Activism & Patent Law" 20(2)National Law School of India Review (2008).
2. G. Sharma and H. Kumar "Exploring the Possibilities of Utility Models Patent Regime for Grassroots Innovations in India" 23 Journal of Intellectual Property Rights (2018).
3. G. Nair and A. Fernandes "Patent Policies and Provisions Relating to Pharmaceuticals in India" 19 Journal of Intellectual Property Law (2014).

Paper VI

Project Report: 100 Marks

Students are required to prepare a project report on any of the topic mentioned from Paper I – Paper V or on any other topic related to the topics mentioned in syllabus.

Guidelines for Project report:-Handwritten or typed, in about 1500 words.

Marks Allocation-
Written/Typed submission- 60 Marks
Viva-voce- 40 Marks

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